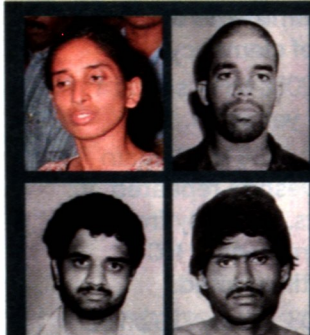


SUSPENDED JUSTICE

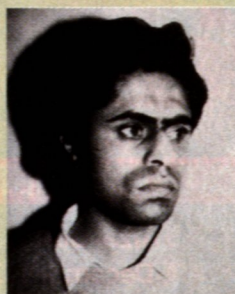
RAJIV GANDHI'S ASSASSINATION



CONVICTED (Clockwise from extreme left) Nalini, Murugan, Santhan and Arivu
DATE OF CRIME May 21, 1991
CONVICTION January 28, 1998
MERCY APPEAL FILED 2000
STATUS Nalini's death sentence converted into life while the President's decision is awaited for the others since 2005.

BLAST AT IYC OFFICE, DELHI

CONVICTED Devinderpal Singh
DATE OF CRIME September 11, 1993
CONVICTION August 24, 2001
MERCY APPEAL FILED 2003
STATUS His target was the then Indian Youth Congress (IYC) chief M.S. Bitta. Is awaiting the President's decision since 2005.



BLAST IN A COURT

CONVICTED Sheikh Meeran, Selvam and Radhakrishnan
DATE OF CRIME November 29, 1994
CONVICTION October 5, 1998
MERCY APPEAL FILED 2000
STATUS The blast took place in the chamber of the judge in Kanyakumari. But the judge refused to give the witness of the incident. The trio are awaiting the President's decision on their mercy plea since 2005.

MURDER OF 17 PEOPLE

CONVICTED Piara, Sarabjit, Gurdeo and Satnam Singh
DATE OF CRIME November 21, 1991
CONVICTION January 15, 1996
MERCY APPEAL FILED 1997 and 2003
STATUS Convicted for killing 17 people of a marriage party in Punjab, the four were granted death sentence by the trial court on which a Presidential decision is awaited since 2005.

MASSACRE OF 22 POLICEMEN

CONVICTED Simon, Gnanprakash, Madaiah and Bilavandra
DATE OF CRIME April 1993
CONVICTION September 29, 2001
MERCY APPEAL FILED 2004
STATUS Members of the dacoit and smuggler Veerappan's gang, the four used mines to blow up a bus carrying policemen. The President's decision is awaited since 2005.

long list of mercy petitions, including those of eight terrorists, are pending in the President's office. Last year, INDIA TODAY filed a series of queries with the Delhi Government, the President's Secretariat and the MHA on the status of pending clemency petitions. The facts are startling. When the UPA Government came to power in May 2004, there were 13 cases for clemency involving 22 convicts pending before the President. As of April 1, 2010, 25 mercy petitions involving 48 convicts are pending before the President.

Assuming confirmation of the sentence, Kasab too will join the queue of clemency seekers. Last May, soon after P. Chidambaram assumed office as home minister after the UPA returned to power, he said, "Twenty-eight mercy petitions are pending. Afzal Guru is the 22nd." Last June, Law Minister Veerappa Moily eloquently declared, "You cannot pick and choose and hang", which meant there is no escaping the queue system. And obviously this is one queue nobody wants to jump. Adding to the delay will be new entrants. As per the 2007 NCRB records, 308 death convicts are languishing in various jails. Once their sentences are confirmed, they will join the queue too. So even if the Kasab case were to be fast-tracked through the high court and the Supreme Court and he were to join the queue this week (counting the 25 appeals involving 48 convicts), he would be No. 49 on the list. Since 2004, only three cases have been disposed of. One can imagine how long it will take for Kasab's petition, 26th on the list, to be decided.

There is no denying that the delay over Guru's clemency plea has been a cause of public ire. The simmering anger over the inability to deal effectively with Pakistan for its role in fomenting terror will boil over if Kasab benefits from the system of procedural and political sloth that has created this long queue of death row beneficiaries. The Kasab case offers an opportunity for the government to surgically excise this malignancy. Justice must not only be done but seen to be done. ■

UNDER THE CONSTITUTION, THERE IS NO TIME LIMIT FOR DISPOSING CLEMENCY PETITIONS. THIS LACUNA IS BEING EXPLOITED POLITICALLY.